HEADNOTE

> *"In weighing the interests of the applicant against the interests mentioned in Art. 45 UPCA, once the proceedings have come to an end, as in the present case by way of settlement, the integrity of proceedings is no longer at stake and the balance of interests will normally be in favour of granting access to written pleadings and evidence pursuant to Rule 262.1(b) RoP, subject to the redaction of personal data and the redaction of confidential information pursuant to Rule 262.2 RoP."*

COURT
Central Division in Munich

PROCEEDINGS
Confidentiality order

PATENT
EP3056563

METHOD OF PRODUCING RETINAL PIGMENT EPITHELIAL CELL

KEYWORDS

Article 10 | 45 UPCA | Rule 262.1(b) | 262.2 RoP | Public access to written pleadings and evid... | Confidentiality request | Redaction of confidential information | Redaction of personal data

Article 45 Public proceedings

SUMMARY
The Central Division in Munich ruled on a confidentiality order. The patent at issue relates to a method of producing retinal pigment epithelial cells. According to the headnotes of the decision, once proceedings end by settlement, the integrity of proceedings is no longer at stake. This means the balance of interests will normally favour granting access to written pleadings and evidence. However, such access must be subject to redaction of personal data and confidential information as required by the Rules of Procedure.